

CITY OF CHEYENNE
CONTRACT MODIFICATION

APPROVED

By Stefanie Boster at 8:52 pm, May 01, 2022

Contract Modification: #1

Project: Ice and Events Center Roof Replacement

Project Number: Contract # 7475

Contractor: Front Range Roofing Systems LLC.

Date Prepared: 4/25/22

The above referenced contract is amended or modified as set forth in the following and these amendments and modifications of the plans and specifications are agreed to by the parties. All other aspects of the original agreement remain unchanged and in full force and effect.

I. Description of Changes

Additional water damage was found after the roof membrane was removed. Some wood structures and wall board need to be replaced.

II. New Contract Items

None.

III. Schedule

No change.

IV. Summary

Original Contract Amount	\$181,650.00
Previous Modifications	\$0
Contract Amount Prior to this Modification	\$181,650.00
This Modification	\$10,720.00
New Contract Amount	\$192,370.00

V. Approvals

DATE: _____

City of Cheyenne

Mayor Patrick Collins

/_____
/ATTEST: City Clerk Kristina F. Jones

Recommend approval by City Project Manager / Accepted by Consultant



March 30, 2022

Attention: Steve Gaer – City of Cheyenne

Reference: Ice & Events Center Reroof

Change Order Scope Of Work:

- Add 3" polyiso over entire area.
- Sheet edge with ½" CDX plywood.
- Replace nailers along edge.

Base Price: \$9,160.00

Qualifications and Exclusions:

- Excludes: Water Based or Low VOC Bonding Adhesive, Primers or Sealants, Insulation below roof deck or in Wall Cavity, Flood Testing of Roof System, Roof Hatches, Any Mechanical, Electrical or Plumbing Work, Deck Patching, Any Physical testing of Roof system including but not limited ASTM E907 & FM 1-52, Field Painting, Davis Bacon or Prevailing Wage rates, Engineering, Design & Layout Services, Demolition of any kind, Snow/Ice Removal, Snow/Ice Retention, Interior Protection, Textura or Similar Payment System, Overtime or Double time wages.
- Excludes: Custom Colors, Venting, Equipment Curbs, Equipment Supports, Door and Window flashings, Through wall and other integrated Masonry flashings, Masonry Saw Cutting, louvers, Steel Grates, Splash Blocks, EFIS Flashings, Gas Line Stands or Slip-sheets, Soffit Panels and related flashings.

Your review and consideration of the above contract proposal is appreciated. If you have further questions or we can provide additional service or information, please do not hesitate to call. This offer will remain open for your acceptance for 5 days from the date of this letter and is subject to all exclusions and attached Terms and Conditions.

Sincerely,
Front Range Roofing

Greg Farris 970-518-7764



April 5, 2022

Attention: Steve Gaer – City of Cheyenne

Reference: Ice & Events Center Reroof

Change Order #2 Scope Of Work:

- Remove and replace gypsum wall board.
- Damage caused by moisture intrusion.

Base Price: \$1,560.00

Qualifications and Exclusions:

- Excludes: Water Based or Low VOC Bonding Adhesive, Primers or Sealants, Insulation below roof deck or in Wall Cavity, Flood Testing of Roof System, Roof Hatches, Any Mechanical, Electrical or Plumbing Work, Deck Patching, Any Physical testing of Roof system including but not limited ASTM E907 & FM 1-52, Field Painting, Davis Bacon or Prevailing Wage rates, Engineering, Design & Layout Services, Demolition of any kind, Snow/Ice Removal, Snow/Ice Retention, Interior Protection, Textura or Similar Payment System, Overtime or Double time wages.
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Sincerely,
Front Range Roofing

Greg Farris 970-518-7764

APPROVED
By Stefanie Boster at 4:57 pm, Jan 18, 2022

**CITY OF CHEYENNE, WYOMING
AGREEMENT**

Bid No. S-8-22

Contract No. 7475

THIS AGREEMENT, entered into this 14th day of February, 2022, by and between the CITY OF CHEYENNE, WYOMING, hereinafter referred to as the "CITY", and **FRONT RANGE ROOFING SYSTEMS, LLC**, hereinafter referred to as the "CONTRACTOR".

WITNESSETH that the Contractor and the City, for the considerations stated herein, mutually agree as follows:

ARTICLE 1. STATEMENT OF WORK. The Contractor shall furnish all supervision, technical personnel, labor, materials, machinery, tools, equipment, and services, including utility and transportation services, and perform and complete all work in an efficient and workmanlike manner in the construction of the "**Ice and Events Center Roof Replacement (Base Bid + ABI #1)**" project all in strict accordance with the Contract Documents including all addenda thereto, numbered and dated: Addendum One (1), dated December 9, 2021, Addendum Two (2), dated December 16, 2021, Addendum Three (3), dated December 20, 2021, and Addendum Four (4), dated January 4, 2022.

ARTICLE 2. RESPONSIBLE DESIGNEE FOR THE CITY. The Contractor shall in any and all matters relating to the scope of services to be provided under this Contract or any other provisions herein, contact the City Engineer, or his/her designated representative.

ARTICLE 3. TIME FRAME FOR COMPLETION. The services to be performed under this Agreement shall commence on the date stipulated in the "Notice to Proceed" that will be issued by the City. The work shall be completed by **June 30, 2022**. If the work has not been completed within the time stipulated above, including any extensions of time issued by the City for excusable delays, the Contractor and his/her sureties shall pay the City fixed, agreed liquidated damages, as stipulated in the Supplemental Conditions, for each calendar day of delay until the work is completed.

ARTICLE 4. COMPENSATION AND METHOD OF PAYMENT. The CITY will pay the CONTRACTOR for the performance of the Contract in current funds, the sum of **One Hundred Eighty-One Thousand, Six Hundred Fifty Dollars (\$181,650.00)**. In the event there are changes in the estimated quantities shown on the Bid Proposal, the unit prices multiplied by the actual quantities shall govern, and the total contract amount will be adjusted accordingly. The City agrees to pay the above amount for contractual services in the following manner, upon receipt of appropriate documentation:

- a. The Contractor will be paid on a monthly basis for percentage of estimated work completed. Submittal will be at least seven (7) business days prior to the payable due date as established annually by the City Treasurer's Office. The pay request shall be submitted on the Contract Payment Request Form and Itemized Pay Request or the AIA Documents G702 and G703. The engineer will review the estimate for approval prior to payment.

- b. The City will withhold five percent (5%) of the dollar value of the work completed for a minimum of forty-one (41) calendar days after Notice of Final Settlement has been published in accordance with Wyo. Stat. § 16-6-116. Upon completion of the work under this Contract, the Contractor shall submit a Contractor's Certificate of Completion; the Consent of Surety; Final Waivers of Lien from the Contractor, and all Sub-Contractors, Suppliers and Materialmen; Affidavit of Release of Liens; Affidavit of Payment; and a current Workers Compensation Certificate. Final payment will not be made until the above documents have been received by the City and all items on the Punch List have been completed, and the advertising requirements have been met.

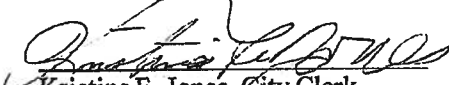
ARTICLE 5. CONTRACT. The executed Contract Documents shall consist of the following:

- | | |
|-----------------------------|---|
| 1. This Agreement; | 6. General Conditions and Insurance; |
| 2. Addenda; | 7. Supplemental Conditions; |
| 3. Invitation for Bids; | 8. Part IV Forms & Notices; |
| 4. Instructions to Bidders; | 9. Specifications and Special Provisions; and |
| 5. Signed Bid Proposal; | 10. Drawings. |

This Agreement, together with other documents enumerated in this Article 5, which said other documents are as fully a part of the Contract as if hereto attached or herein repeated, forms the Contract between the parties hereto.

IN WITNESS WHEREOF, THAT the governing body of the City of Cheyenne has authorized the Mayor as Executive Officer of the City to enter into this Agreement, and that the parties hereto have caused this Agreement to be executed on the day and year in the first part herein written.

ATTEST:


Kristina F. Jones, City Clerk

CITY OF CHEYENNE, WYOMING


Patrick Collins, Mayor

Front Range Roofing Systems, LLC

Contractor

By
Greg Farris

DocuSigned by:



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Title
Project Mngr/Est

222 13th Avenue
Greeley, Colorado 80631

EXHIBIT A

Contract Modification #1 for Ice and Events Center Roof Replacement